

		Counsel for Defendants submits a declaration stating that after Defendants filed their answer on 9/30/25, counsel conducted further investigation into the facts and circumstances of Plaintiff's employment with Defendants, including reviewing employment records, wage statements, communications between the parties, and witness statements. (Carey Decl., ¶ 5.) Based on this investigation and legal research, counsel determined Defendants have valid cross-claims against Plaintiff arising from the same employment relationship and the same factual circumstances alleged in Plaintiff's Complaint. (Carey Decl., ¶ 6.) Defendants then filed the instant motion on 1/27/26. Defendants further contend the proposed cross-complaint arises from the same operative facts as Plaintiff's complaint and that the case is still in its early stages with ongoing discovery and no trial date. (Carey Decl., ¶¶ 12, 14.) The Court does not find Defendants have acted in bad faith. To the extent Plaintiff contends the causes of action in Defendants' proposed cross-complaint are subject to California's Anti-SLAPP statute and/or demurrer, "a party that unsuccessfully opposes a motion for leave to file an amended complaint or cross-complaint has the right to demur to the new pleading after it is filed." (Talbot v. Ghadimi (2025) 109 Cal.App.5th 967, 976, fn. 7 [citations omitted].) Tentative Ruling: The Court GRANTS Defendants New Life Treatment Center, Inc. and Mary Malek's motion for leave to file a cross-complaint against Plaintiff Sheyda Morales Cadenas. Defendants are ORDERED to file the cross-complaint within ten (10) days
4	Gunbilir vs. Ed's Detail Inc. 2024-01387919	Motion for Leave to File Amended Complaint Isganuhi Suna ("Suna"), Successor Trustee of the Kirkor Gunbilir Revocable Living Trust Dated March 4, 2019, seeks leave to amend the Complaint to be substituted as Plaintiff in place of Nerses Gunbilir, former Trustee of the Gunbilir Trust, and to attach the appropriate Lease Agreement as Exhibit "A".

	The court may, in the furtherance of justice, and on such terms as may be proper, allow amendment of a complaint at any time before or after commencement of trial. (Code Civ. Proc. §§ 473(a)(1), 576.) There is a general policy of great liberality in allowing amendment of pleadings at any stage of the litigation to allow cases to be decided on their merits. (Desny v. Wilder (1956) 46 Cal.2d 715, 751.) Further, under Code of Civil Procedure section 368.5, an action or proceeding does not stop by the transfer of an interest in the action. Section 368.5 allows the court to consent to a person to whom the transfer is made, to be substituted in the action in his/her place. Code of Civil Procedure section 375 provides “[a]n action or proceeding does not abate by the disability of a party. The court, on motion, shall allow the action or proceeding to be continued by or against the party's representative. Here, after Nerses returned to his homeland of Turkey, the Probate Court granted a Petition for an Order Regarding Construction of Trust Instrument and Confirming Appointment of Successor Trustee of the Gunbilir Trust (“Petition”) on or about November 12, 2024. (Ozhekim Decl., ¶7, Ex. 3.) The Probate Court ruled that Suna was the Successor Trustee of the Gunbilir Trust. (Ibid.) Thus, Suna has satisfied the requirements of sections 368.5 and 375 to be substituted as the Plaintiff. In addition, Suna has established it is necessary to amend the Complaint to attach the correct Lease Agreement. The Lease Agreement currently attached as Exhibit A to the Complaint is a sublease for the Property rather than the actual lease with the Defendants. (Ozhekim Decl., ¶9, Ex. 2.) Defendants have not filed an opposition and therefore have not shown they will be prejudiced by the amendment. The motion complies with California Rules of Court, Rule 3.1324. In California, the general policy favors leave to amend. Tentative Ruling: The Motion for Leave to Amend the Complaint is GRANTED. Suna is ordered to file the First Amended Complaint within 10 days.
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5	Pacific Coast Builders, Inc. vs. Tuck 2024-01420133	Motion for Attorney Fees Defendants’ counsel filed a Notice of Automatic Stay on 4/3/26 which states the case is stayed “with regard to all parties” due to Chapter 11 bankruptcy proceedings by Defendant/Cross-Complainant David Tuck. Moreover, Cross-Complainants’ reply filed on 5/11/26 states the case is stayed. However, a bankruptcy stay generally applies only to actions against the debtor. (<i>In re Bidermann Industries U.S.A., Inc.</i> (Bankr. S.D.N.Y. 1996) 200 B.R. 779, 782; <i>Higgins v. Superior Court</i> (2017) 15 Cal.App.5th 973, 975 [“As a matter of law, the automatic stay that applied to claims against debtor Powell did not apply to Cabandong's claims against nondebtor Higgins”].) Tentative Ruling: Cross-Complainants’ Motion for Attorney Fees is CONTINUED to 6/15/26. The parties shall each file a supplemental brief, not to exceed seven pages, no later than 6/1/26, addressing the following issues: 1). Does the bankruptcy stay apply to Plaintiff’s action against Defendant Heather Tuck? 2). Does the stay apply to the Tucks’ Cross-Complaint?
6	Tsirtsis vs. Pacific Hospital Long Beach 2024-01427440	Motion to Be Relieved as Counsel of Record Moving attorney states withdrawal is necessary under Rules of Professional Conduct 1.16(b)(4)-(5), which provide for terminating representation on the following grounds: “(4) the client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively; (5) the client breaches a material term of an agreement with, or obligation, to the lawyer relating to the representation, and the lawyer has given the client a reasonable* warning after the breach that the lawyer will withdraw unless the client fulfills the agreement or performs the obligation;” Tentative Ruling: The motion of attorney Lawrence Hoodack to withdraw as attorney of record for Plaintiff James Dimitri Tsirtsis is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.